

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPA055118: LUC FORKIN, BY AND THROUGH GUARDIAN AD LITEM,
TOBIE FORKIN vs RICHARD WINTON**

08/18/2026 in Department 43

**Motion to Compel Defendant Richard Winton to Respond to Plaintiff's Form
Interrogatories and Special Interrogatories and Request for Monetary Sanctions Totaling
\$2,040 Against Defendant Richard Winton**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

1. Motion to Compel Defendant Richard Winton to Respond to Plaintiff's Form Interrogatories and Special Interrogatories and Request for Monetary Sanctions
2. Motion to Compel Defendant Richard Winton to Respond to Plaintiff's Requests for Production and Request for Monetary Sanctions
3. Motion to Deem Requests for Admission Admitted Against Defendant Richard Winton and Request for Monetary Sanctions

Tentative Rulings: The three discovery motions are DENIED because they have been rendered moot by the service of substantially compliant responses to the discovery.

In reply to the opposition to the motion, Plaintiff concedes that responses were served but reiterates the request for the monetary sanctions requested in the motion. In ruling on the request for monetary sanctions, the Court notes the following:

1. Each of the three motions are identical, but for a minor alteration of the discovery at issue.
2. Despite each of the motions being virtually identical, counsel represents in her declaration that each motion required the exact same amount of time to prepare. The Court may accept that it took 0.8 hours to prepare the first motion, but the Court does not believe it took 0.8 hours to replace a handful of words in the second and third.
3. In her declaration, counsel anticipates, and requests sanctions for, 0.5 hours reviewing each of three opposing briefs, 1.0 hours to prepare each of three reply briefs, and 1.0 hour to appear at a hearing on each motion. Notwithstanding the fact that there will only be one brief hearing for all three motions, experienced counsel would acknowledge that the opposing briefs (if any) would be redundant (just as the motions are) and the reply briefs would be as identical as the motions.
4. A single reply brief was filed encompassing all three motions. The reply brief does not state that the responses are noncompliant, so the Court assumes they are sufficient. The reply brief doubles down on the sanctions request, without acknowledging the request was for preparing three separate reply briefs when only one was prepared, or that three hours was sought for attending each of three hearing(s) when only the sanctions remain at issue and only one hearing would be held. While the Court appreciates the economy of preparing a single reply, the Court does not appreciate counsel improperly seeking an award of sanctions for time that was not incurred.
5. Counsel claims her standard billing rate is \$600 per hour. The Court would expect pristine work at that rate, yet the motions contain numerous errors. The motion to deem matters admitted concludes with a request that the Court order responses to the requests for admission, not deem the matters admitted. Each of counsel's three declarations attempt to justify the \$600 per hour rate based on "his experience" as an attorney and "her extensive experience" litigating. It is clear to the Court that the briefs and declarations are mostly recycled from previous filings with little more than a few names, dates, and facts changed. The Court does not believe that the time claimed is accurate or that the work product justifies \$600 an hour.

Discovery sanctions are not intended to serve as profit generators. They are intended to compensate parties for actual time that otherwise would not have been spent, but for a party's noncompliance. Because the Court concludes that counsel has not been accurate or forthright in her request for monetary sanctions, the Court limits the award of sanctions to only the filing fees incurred. The Court awards \$180 in monetary sanctions, payable to Plaintiff by Defendant within 30 days.

Moving party is ordered to serve notice of the Court's ruling.